

April 17, 2026, Probate Tentative Rulings

1. P15-15743 In the Matter of Ian Butler

No appearances are required. The conservatorship of the person shall continue. The conservatorship still appears to be warranted. The Conservators are acting in the best interests of the Conservatee regarding the Conservatee's placement and quality of care, including physical and mental treatment. The next biennial review is set for April 14, 2028, at 9:00 a.m., in Department 6. The court investigation fee for this biennial review is waived.

2. PR0000455 In the Matter of Wade Amesbury

Appearances are required. Based on the record at present, including reports of the Public Guardian and Court Investigator, it appears that a conservatorship of the person may no longer be required. The Court Investigator indicates that it may be appropriate for the Conservatee "to participate in completion of a capacity declaration to provide confirmation from a medical professional." The parties shall be prepared to address the same and update the Court as to the current status of the Conservatee.

3. PR0000475 In the Matter of Michael Bond

Appearances are required. Petitioner has provided a proof of service for March 19, 2026, substituted service on Dalton Workman regarding the petition to recover property. Workman has not filed a response and the Court must determine if there will be any opposition on his part. In the absence of opposition, Petitioner shall advise the Court how it intends to proceed in connection with a potential default or non-opposition by Workman. *See Urick v. Urick* (2017) 15 Cal.App.5th 1182, 1194–1195 ("The general rules of the Code of Civil Procedure do not apply when the Probate Code provides special rules. In the absence of a special rule, the general rules of practice apply to matters of procedure in the probate court.").

Separately, the petition for confirmation of sale of personal property, namely, the 2016 Dodge Ram, was previously granted on February 6, 2026. The Court is cognizant of the April 3, 2026, reply of Administrator, and April 14, 2026, declaration of Jayce Prochaska. The disposition of the Dodge Ram is presently a matter for the Administrator, unless and until some properly noticed motion is filed by an interested party related to the same.

4. PR0000655 In the Matter of Willah Brave Barlow Dunwody

No appearances are required. The petition to modify orders is granted. The Guardian is permitted to invest the funds in a treasury market account. Bond remains as set. Guardian shall submit a proposed order. Additionally, the Court set an accounting hearing on December 4, 2026, at 9:00 a.m., in Department 6. Guardian shall submit their annual accounting in advance of the continued court date.

5. PR0000783 In the Matter of Brian Bennett

No appearances are required. There is no record that the El Dorado Superior Court has received the records of this case and accepted transfer. The Clerk of the Court is directed

to contact the Clerk of El Dorado Superior Court to ensure it has received the records and returned a receipt for the same. The Court sets a further review hearing regarding transfer of venue on July 17, 2026, at 9:00 a.m., in Department 6. Upon receipt of confirmation of transfer this date shall be vacated by the Clerk unless ordered otherwise.

6. PR0000832 In the Matter of Bonnie May McGuire

Appearances are required. The parties shall update the Court regarding appointment of a mutually acceptable special administrator, potential mediation pursuant to a *Breslin* order, and setting a hearing on the petitions for probate and administration of the estate.

7. PR0000918 In the Matter of Robert Earl Cole

No appearances are required. The petition for appointment of a conservatorship of the person is granted. Robert Cole is appointed as Conservator and letters shall issue. The Court sets an annual review on February 5, 2027, at 9:00 a.m., in Department 6. It is alleged the estate has sufficient funds to pay for the investigative fee. Quest investigations shall submit their fee request. Absent objection, the Court shall order the estate to pay the investigation fee.

8. PR0000927 In the Matter of Jane Rebecca Binks

Appearances are required. The Court is favorably inclined to order the parties to attend mediation, with costs of the same to be paid by the trust, pursuant to Probate Code section 17206 and *Breslin v. Breslin* (2021) 62 Cal. App.5th 801, 806 (“The probate court has the power to order the parties into mediation.”). The parties are hereby advised:

Mediation may result in a settlement of the matters that are the subject of this case and of any and all interested persons and parties interests therein. Settlement of the matter may result in an agreement for the distribution of assets of the above-referenced trust and of the estates of the settlors therein, however those assets may be held. Settlement of the matter may also result in an award of attorneys’ fees to one or more parties under *Smith v. Szezyller* (2019) 31 Cal.App.5th 450, 242. Interested persons or parties who do not have counsel may attend the mediation and participate.

Non-participating persons or parties who receive notice of the date, time and place of the mediation may be bound by the terms of any agreement reached at mediation without further action by the Court or further hearing. Rights of trust beneficiaries or prospective beneficiaries may be lost or forfeited by the failure to participate in mediation. Participation in mediation is a prerequisite to an evidentiary hearing. By failing to participate in mediation, a person or party will waive their right to an evidentiary hearing.

Petitioner Jane Rebecca Binks and Trustee Claire Susanne Waites shall meet and confer regarding selection of a mutually acceptable mediator. The Court continues this matter for review on the status of mediation to July 17, 2026, at 9:00 a.m., in Department 6, and continues to reserve jurisdiction over the pending motions. No later than two weeks prior to the continued hearing date, the parties shall submit a joint statement indicating the